



US Department
of Transportation

Research and
Special Programs
Administration

JUN 30 1994

411 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11279

EXPIRATION DATE: July 5, 1994

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Van Waters & Rogers, Incorporated
Anchorage, AK
2. PURPOSE AND LIMITATION: This exemption authorizes the one-time transportation in commerce of six (6) DOT Specification 4AA480 cylinders containing 150 pounds of Anhydrous ammonia, liquefied, Division 2.2, which exceeds the quantity limitations authorized for shipment by cargo aircraft only. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Table 172.101 Column (9B); Part 107, Appendix B, Subpart B (1)
5. BASIS. This exemption is based on Van Waters & Rogers, Incorporated's application dated June 28, 1994, submitted in accordance with 49 CFR 107.113 and a determination that it is necessary to prevent a serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Ammonia, anhydrous, liquefied	Division 2.2	UN1005	N/A

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7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed is six (6) DOT Specification 4AA cylinders. The capacity of each cylinder may not exceed 150 pounds.
- b. The cylinders must be palletized in a horizontal position and secured within the aircraft to prevent movement during transportation.
- c. The aircraft's ventilation systems must be configured to provide maximum ventilation during flight.
- c. MARKING - The marking requirement of 49 CFR Part 107, Appendix B, Subpart B (1) is waived. In addition, the marking requirements of Part 172 are applicable to shipments made under this exemption.

8. SPECIAL PROVISIONS.

- a. This shipment will originate in Anchorage, Alaska, destined for King Salmon, Alaska, The air carrier is Northern Air Cargo.
- b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED. Cargo aircraft only.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each aircraft used to transport the cylinders covered by this exemption. In accordance with the provisions of 49 CFR Part 107, Appendix B to Subpart B, paragraph 3, the shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

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11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FAA